

Court No. - 32

Case :- WRIT - C No. - 38003 of 2018

Petitioner :- Ramdayal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajendra Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shashi Kant,J.

This writ petition has been filed by the petitioner for quashing the recovery citation dated 20.02.2018 issued to him by the Electricity Department.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority within 15 days by a speaking order.

For a period of 30 days or till the matter is decided by the authority concerned, whichever is earlier, recovery proceedings initiated against the petitioner shall remain stayed.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 22.11.2018

Arun